

SquareUp — Data Processing Agreement

Effective date: May 21, 2026

This Data Processing Agreement ("DPA") forms part of, and is incorporated into, the Master Services Agreement between SquareUp, Inc. ("SquareUp") and Client (the "Agreement"). In this DPA, "SquareUp" includes SquareUp, Inc. and its Indian subsidiary, which processes India-resident Personal Data on the same terms. This DPA governs the processing of Personal Data in connection with the Services. If the Agreement and this DPA conflict on the processing of Personal Data, this DPA controls.

Two roles — please read. SquareUp's role depends on the engagement. (1) Where Client supplies Client Contacts or otherwise decides the purpose of the research, **Client is the controller / business and SquareUp is the processor / service provider**, and Sections 3–10 of this DPA apply. (2) Where SquareUp sources Participants itself, **SquareUp acts as an independent controller** of that Participant Personal Data and handles it under the Participant Privacy Notice (Document 3); this DPA's processor obligations do not apply to that processing. Annex 1 for each engagement records which role applies.

1. Definitions

- **"Personal Data"** means information relating to an identified or identifiable individual that SquareUp processes on Client's behalf under the Agreement.
- **"Controller," "Processor," "Data Subject," and "Processing"** have the meanings given under Applicable Data-Protection Law. Under U.S. state privacy laws, "Controller" includes "Business" and "Processor" includes "Service Provider"; under India's DPDP Act, "Controller" corresponds to "Data Fiduciary," "Processor" to "Data Processor," and "Data Subject" to "Data Principal."
- **"Applicable Data-Protection Law"** means all privacy and data-protection laws applicable to the processing, including U.S. state privacy laws (such as the California Consumer Privacy Act, as amended (the "CCPA")) and India's Digital Personal Data Protection Act, 2023 (the "DPDP Act").
- **"Sub-processor"** means a third party engaged by SquareUp to process Personal Data in providing the Services.
- **"Personal Data Breach"** means a breach of security leading to the accidental or unlawful destruction, loss, alteration, unauthorised disclosure of, or access to, Personal Data.
- Other capitalised terms have the meanings given in the Agreement.

2. Roles and scope of processing

2.1 Annex 1 describes, for the relevant engagement, the subject matter, duration, nature and purpose of the processing, the types of Personal Data, and the categories of Data Subjects, and records whether SquareUp is acting as Client's processor or as an independent controller.

2.2 Where SquareUp acts as Client's processor, Client is the controller and instructs SquareUp to process Personal Data only as set out in the Agreement, this DPA, and Annex 1, and as otherwise documented in writing. SquareUp will inform Client if, in its opinion, an instruction infringes Applicable Data-Protection Law.

2.3 Each party will comply with its own obligations under Applicable Data-Protection Law. Client is responsible for the lawfulness of the Personal Data it provides and the instructions it gives, including holding all notices, consents, and legal bases required for SquareUp to process the Personal Data and to contact, interview, and record Data Subjects.

3. SquareUp's obligations as processor

When acting as Client's processor, SquareUp will:

- **Instructions** — process Personal Data only on Client's documented instructions, including for any international transfer, unless required to do otherwise by law (in which case it will inform Client unless legally prohibited);
- **Confidentiality** — ensure that personnel authorised to process Personal Data are bound by confidentiality obligations;
- **Security** — implement and maintain the technical and organisational security measures described in Annex 2;
- **Sub-processors** — engage Sub-processors only as permitted by Section 5;
- **Data-subject requests** — taking into account the nature of the processing, assist Client by appropriate measures to respond to requests from Data Subjects exercising their rights;
- **Assistance** — assist Client in ensuring compliance with its security, breach-notification, data-protection-impact-assessment, and prior-consultation obligations, taking into account the information available to SquareUp;
- **Breach notification** — notify Client without undue delay after becoming aware of a Personal Data Breach affecting Client's Personal Data, and provide information reasonably available to it to help Client meet its own obligations;
- **Deletion or return** — on termination of the Services, delete or return Personal Data as described in Section 10; and
- **Records and audits** — make available information reasonably necessary to demonstrate compliance with this DPA, and allow for and contribute to audits as described in Section 9.

4. Client's obligations as controller

- Client will provide, and process, Personal Data in compliance with Applicable Data-Protection Law.
- Client will give all privacy notices, and obtain and maintain all consents and legal bases, required for SquareUp and its Sub-processors to process the Personal Data and to contact, interview, and record Data Subjects — including any consent required under the TCPA for outbound calls using an artificial or AI-generated voice, and any consent required to record calls.

- Client's instructions for processing will comply with Applicable Data-Protection Law, and Client is responsible for the accuracy, quality, and legality of the Personal Data and the means by which it was obtained.

5. Sub-processors

5.1 Client provides general authorisation for SquareUp to engage Sub-processors to process Personal Data. The Sub-processors approved as of the effective date are listed in Annex 3.

5.2 SquareUp will impose data-protection obligations on each Sub-processor that are substantially equivalent to those in this DPA, and remains responsible for each Sub-processor's performance.

5.3 SquareUp will give Client advance notice of any intended addition or replacement of a Sub-processor (for example, by email or through an updates page). Client may object on reasonable data-protection grounds within 15 days; the parties will work in good faith to resolve the objection, and if they cannot, Client may terminate the affected Services as its sole remedy.

6. International transfers and data localisation

6.1 SquareUp follows a data-localisation approach: Personal Data relating to United States operations is stored and processed in the United States, and Personal Data relating to India operations is stored and processed in India.

6.2 Where Personal Data is nonetheless transferred across borders — for example, where a Sub-processor or authorised personnel in one country supports the other — SquareUp will ensure an appropriate transfer mechanism and safeguards are in place as required by Applicable Data-Protection Law. This DPA covers Personal Data of individuals in the United States and India only. SquareUp does not knowingly process Personal Data of individuals in the EEA, the United Kingdom, or Switzerland under this DPA; before any such data is processed, the parties must put in place the EU/UK Standard Contractual Clauses and a UK Addendum.

7. United States state privacy law terms

This Section applies where SquareUp processes Personal Data of US residents as a Service Provider / Processor. SquareUp will:

- process the Personal Data only to provide the Services and for the limited, specified business purposes set out in the Agreement and Annex 1;
- not sell or share the Personal Data, and not retain, use, or disclose it for any purpose other than those permitted by Applicable Data-Protection Law, or outside the direct business relationship with Client;
- not combine the Personal Data with personal information from other sources, except as permitted by Applicable Data-Protection Law;
- provide the same level of privacy protection as is required of Client, and comply with applicable obligations; and
- notify Client if it determines it can no longer meet these obligations, and on notice allow Client to take reasonable steps to stop and remediate unauthorised use.

SquareUp certifies that it understands and will comply with these restrictions.

8. India DPDP Act terms

This Section applies where SquareUp processes Personal Data of individuals in India as a Data Processor for Client as Data Fiduciary. SquareUp will process such Personal Data only under a valid contract with Client and in accordance with Client's instructions, implement reasonable security safeguards, assist Client with Data Principals' requests and grievance-redressal, support Client's breach-reporting obligations to the Data Protection Board of India and to affected Data Principals, and delete Personal Data on completion of the purpose or termination, except where retention is required by law.

9. Data-subject requests, breaches, and audits

9.1 Data-subject / Data-principal requests. If SquareUp receives a request from a Data Subject relating to Personal Data it processes for Client, it will, where permitted by law, direct the Data Subject to Client or promptly inform Client, and will assist Client in responding.

9.2 Personal Data Breaches. SquareUp will notify Client without undue delay, and in any event consistent with Applicable Data-Protection Law timelines, after becoming aware of a Personal Data Breach affecting Client's Personal Data, and will cooperate in investigation and remediation.

9.3 Audits. On reasonable prior written notice, no more than once per year (unless required by a regulator or following a Personal Data Breach), SquareUp will make available information necessary to demonstrate compliance with this DPA and allow Client or its mandated auditor to conduct an audit, subject to confidentiality and to not unreasonably disrupting SquareUp's operations. SquareUp may satisfy audit requests by providing current third-party certifications or reports.

10. Term, deletion, and return of data

This DPA remains in effect for as long as SquareUp processes Personal Data under the Agreement. On termination or expiry, and at Client's choice, SquareUp will delete or return Personal Data processed as Client's processor, and delete existing copies, except to the extent retention is required by law or the Personal Data has been de-identified or aggregated. SquareUp's default retention period for interview recordings and transcripts is approximately 12 months, unless Client requests earlier deletion or a different period is agreed in the Order Form.

11. Liability

Each party's liability under or in connection with this DPA is subject to the limitations and exclusions of liability in the Agreement.

12. Annex 1 — Details of Processing

Item	Details
Subject matter	Provision of AI voice-agent customer-research services under the Agreement.
Duration	The term of the applicable Order Form, plus the retention period in

Item	Details
	Section 10.
Nature and purpose	Inviting and scheduling Participants; conducting AI-moderated voice interviews; recording and transcription; analysis and synthesis of responses into research insights for Client.
Role of SquareUp	This single DPA covers all engagements. SquareUp acts as Client's processor for Personal Data that Client provides or directs SquareUp to process (including Client Contacts). SquareUp acts as an independent controller for Participants it sources itself, which it handles under its Participant Privacy Notice. The role applicable to a given activity is determined by which party decides the purpose of that processing.
Types of Personal Data	Name and contact details; scheduling and screening data; audio recordings and transcripts; interview responses (which may include opinions and, where a study genuinely requires it, sensitive information); technical / device data; and incentive and payment data where applicable. SquareUp records and transcribes audio but does not create voiceprints or voice-biometric identifiers.
Categories of Data Subjects	Adults aged 18 and over invited to participate in research — typically Client's customers or prospects, or Participants sourced for the study.
Sensitive data	SquareUp does not seek sensitive personal data and designs studies to avoid it. Where a study genuinely requires it, sensitive personal data is processed only on Client's documented instructions and with the consents and safeguards required by Applicable Data-Protection Law.

13. Annex 2 — Technical and Organisational Security Measures

SquareUp maintains an information-security programme appropriate to the nature of the Personal Data and the risk, including the measures below, and keeps these measures current as its systems evolve.

- **Access control** — role-based access on a least-privilege basis; unique credentials; multi-factor authentication for administrative access; prompt revocation on personnel changes.
- **Encryption** — encryption of Personal Data in transit and at rest using industry-standard methods.
- **Network and application security** — firewalls, environment segregation, secure development practices, and regular vulnerability assessment.
- **Data localisation** — US data stored in US-based infrastructure; India data stored in India-based infrastructure.

- **Logging and monitoring** — logging of access to Personal Data and monitoring for anomalous activity.
- **Sub-processor management** — due diligence and contractual data-protection terms with Sub-processors.
- **Personnel** — confidentiality obligations and security-awareness training for personnel.
- **Business continuity** — backups and documented incident-response and recovery procedures.
- **Vendor assurance** — SquareUp does not yet hold SOC 2 Type II or ISO 27001 certification. It intends to pursue independent security certification as it scales, and will update this Annex when certification is obtained.

14. Annex 3 — Approved Sub-processors

The following Sub-processors are approved as of the effective date. SquareUp keeps this list current and will give Client advance notice of changes as described in Section 5. SquareUp puts a data-protection agreement in place with each Sub-processor before it processes Personal Data.

Sub-processor	Purpose	Processing location
Bolna	Voice-agent infrastructure — placing and receiving interview calls, call connectivity, and participant notifications	United States and India
Major large-language-model providers (e.g., OpenAI, Anthropic, Google)	AI interviewing and analysis of interview responses	United States
Major speech-to-text / transcription providers	Transcription of interview audio	United States
Google Cloud Platform; Amazon Web Services	Cloud hosting and storage of US-resident data	United States
Google Cloud Platform; Amazon Web Services	Cloud hosting and storage of India-resident data	India
Firebase (Google LLC)	Application infrastructure and product analytics	United States
Stripe; Amazon Pay	Processing participant incentive payments, where applicable	United States and India

Note: "major providers" above should be narrowed to the specific vendors SquareUp actually uses before this list is shared with enterprise clients, who typically require named sub-processors.